

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.

In the Matter of

**CERTAIN PORTABLE POWER
STATIONS AND PACKAGING
THEREFOR**

Inv. No. 337-TA-563

NOTICE OF INVESTIGATION

AGENCY: U.S. International Trade Commission

ACTION: Institution of investigation pursuant to 19 U.S.C. § 1337

SUMMARY: Notice is hereby given that a complaint was filed with the U.S. International Trade Commission on February 8, 2006, under section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, on behalf of Roadmaster (USA) Corp. A supplemental letter was filed on February 27, 2006. The complaint, as supplemented, alleges violations of section 337 in the importation into the United States, the sale for importation, and the sale within the United States after importation of certain portable power stations and packaging therefor by reason of infringement of U.S. Design Patent No. D469,739; U.S. Trademark Registration No. 2,594,538; and U.S. Copyright Registration No. VA-1-261-495. The complaint further alleges that an industry in the United States exists as required by subsection (a)(2) of section 337.

The complainant requests that the Commission institute an investigation and, after the investigation, issue a permanent general exclusion order and cease and desist order.

ADDRESSES: The complaint, except for any confidential information contained therein, is available for inspection during official business hours (8:45 a.m. to 5:15 p.m.) in the Office of the Secretary, U.S. International Trade Commission, 500 E Street, S.W., Room 112, Washington, D.C. 20436, telephone 202-205-2000. Hearing impaired individuals are advised that information on this matter can be obtained by contacting the Commission's TDD terminal on 202-205-1810. Persons with mobility impairments who will need special assistance in gaining access to the Commission should contact the Office of the Secretary at 202-205-2000. General information concerning the Commission may also be obtained by accessing its internet server at <http://www.usitc.gov>. The public record for this

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investigation may be viewed on the Commission's electronic docket (EDIS) at <http://edis.usitc.gov>.

FOR FURTHER INFORMATION CONTACT: David O. Lloyd, Esq., Office of Unfair Import Investigations, U.S. International Trade Commission, telephone 202-205-2576.

AUTHORITY: The authority for institution of this investigation is contained in section 337 of the Tariff Act of 1930, as amended, and in section 210.10 of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.10 (2005).

SCOPE OF INVESTIGATION: Having considered the complaint, the U.S. International Trade Commission, on March 7, 2006, ORDERED THAT –

(1) Pursuant to subsection (b) of section 337 of the Tariff Act of 1930, as amended, an investigation be instituted to determine:

(a) whether there is a violation of subsection (a)(1)(B) of section 337 in the importation into the United States, the sale for importation, or the sale within the United States after importation of certain portable power stations and packaging therefor by reason of infringement of U.S. Design Patent No. D469,739, and whether an industry in the United States exists as required by subsection (a)(2) of Section 337; or

(b) whether there is a violation of subsection (a)(1)(C) of section 337 in the importation into the United States, the sale for importation, or the sale within the United States after importation of certain portable power stations and packaging therefor by reason of infringement of U.S. Trademark Registration No. 2,594,538, and whether an industry in the United States exists as required by subsection (a)(2) of Section 337; or

(c) whether there is a violation of subsection (a)(1)(B) of section 337 in the importation into the United States, the sale for importation, or the sale within the United States after importation of certain portable power stations and packaging therefor by reason of infringement of U.S. Copyright Registration No. VA-1-261-495, and whether an industry in the United States exists as required by subsection (a)(2) of Section 337.

(2) For the purpose of the investigation so instituted, the following are hereby named as parties upon which this notice of investigation shall be served:

(a) The complainant is –

Roadmaster (USA) Corp.
41 James Way
Eatontown, New Jersey 07724

(b) The respondent is the following entity alleged to be in violation of section 337, and is the party upon which the complaint is to be served:

Sinochem Ningbo, Ltd.
21 JiangXia Street
Ningbo 315000 China

(c) David O. Lloyd, Esq., Office of Unfair Import Investigations, U.S. International Trade Commission, 500 E Street, S.W., Suite 401, Washington, D.C. 20436, who shall be the Commission investigative attorney, party to this investigation; and

(3) For the investigation so instituted, the Honorable Charles E. Bullock is designated as the presiding administrative law judge.

Responses to the complaint and the notice of investigation must be submitted by the named respondent in accordance with section 210.13 of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.13. Pursuant to 19 C.F.R. §§ 201.16(d) and 210.13(a), such responses will be considered by the Commission if received not later than 20 days after the date of service by the Commission of the complaint and the notice of investigation. Extensions of time for submitting responses to the complaint and the notice of investigation will not be granted unless good cause therefor is shown.

Failure of a respondent to file a timely response to each allegation in the complaint and in this notice may be deemed to constitute a waiver of the right to appear and contest the allegations of the complaint and this notice, and to authorize the administrative law judge and the Commission, without further notice to the respondent, to find the facts to be as alleged in the complaint and this notice and to enter a final determination containing such findings, and may result in the issuance of a limited exclusion order or cease and desist order or both directed against the respondent.

By order of the Commission.



Marilyn R. Abbott
Secretary to the Commission

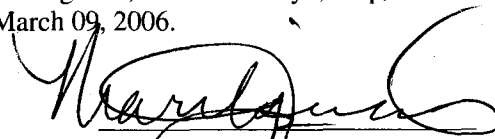
Issued: March 9, 2006

**CERTAIN PORTABLE POWER STATIONS AND PACKAGING
THEREFOR**

337-TA-563

CERTIFICATE OF SERVICE

I Marilyn R. Abbott, hereby certify that the attached **NOTICE OF INVESTIGATION AND COMPLAINT** has been served on upon the Commission Investigative, David O. Lloyd, Esq., and all parties via first class mail and air mail where necessary on March 09, 2006.



Marilyn R. Abbott, Secretary
U.S. Int'l. Trade Commission
500 E Street, S.W.
Washington, D.C. 20436

COMPLAINANT:

Roadmaster (USA) Corporation
41 James Way
Eatontown, New Jersey 07724

COUNSEL FOR COMPLAINANT
ROADMASTER (USA) CORPORATION:

James Greenberg, Esq.
Robert F. Zielinski, Esq.
Charles M. Hart, Esq.
**WOLF, BLOCK, SCHORR AND SOLIS-
COHEN LLP**
1650 Arch Street, 22nd floor
Philadelphia, PA 19103

RESPONDENT:

Sinochem Ningbo, Ltd.
21 JiangXia Street
Ningbo 315000 China

EMBASSY:

Embassy of The Republic of China
2133 Wisconsin Avenue, N.W.
Washington, D.C. 20007
Attn: Commercial Office

GOVERNMENT AGENCIES:

Edward T. Hand
Chief, Foreign Commerce Section
Antitrust Division
U.S. Department of Justice
601 D Street, NW- Room 10023
Washington, DC 20530

George F. McCray, Esq.
Chief, Intellectual Property Rights Branch
U.S. Bureau of Customs and Border Protection
Mint Annex Building
1300 Pennsylvania Avenue, NW
Washington, DC 20229

Randy Tritell, Esq.
Director for International Antitrust
Federal Trade Commission, Room 380
Pennsylvania Avenue at Sixth Street, NW
Washington, DC 20580

Richard Lambert, Esq.
Department of Health & Human Services
Office of General Counsel
National Institute of Health
Building 31, Room 2B50
9000 Rockville Pike
Bethesda, Maryland 20892-2111



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

March 9, 2006

Roadmaster (USA) Corporation
41 James Way
Eatontown, NJ 07724

**Re: Certain Digital Portable Power Stations And Packaging Therefor
Inv. No. 337-TA-563**

Dear Sir/Madam:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 as amended (19 U.S.C. §1337). A copy of the Commission's notice of investigation is enclosed.

Sincerely,

A handwritten signature in black ink, appearing to read "Marilyn R. Abbott", is written over a circular embossed seal.

Marilyn R. Abbott
Secretary

Enclosures:

1. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

March 9, 2006

James Greenberg
Wolf, Block, Schoor And
Solis-Cohen, LLP
1650 Arch Street, 22nd Floor
Philadelphia, PA 19103

**Re: Certain Digital Portable Power Stations And Packaging Therefor
Inv. No. 337-TA-563**

Dear Sir/Madam:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 as amended (19 U.S.C. §1337). A copy of the Commission's notice of investigation is enclosed.

Sincerely,

A handwritten signature in dark ink, appearing to read "Marilyn R. Abbott", is written over the typed name and title.

Marilyn R. Abbott
Secretary

Enclosures:

1. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

March 9, 2006

Sinochem Ningbo, Ltd.
21 JiangXia Street
Ningbo 315000 China

**Re: Certain Digital Portable Power Stations And Packaging Therefor
Inv. No. 337-TA-563**

Dear Sir/Madam:

This letter is to advise you that the United States International Trade Commission has instituted an investigation under Section 337 of the Tariff Act of 1930, as amended (19 U.S.C. 1337). The name respondent for this investigation is **Sinochem Ningbo, Ltd.**

We are herby serving you with a copy of the complaint filed and the notice of investigation issued in this matter. Enclosed is a copy of the Code of Federal Regulations.

Please note that the notice requires a response to the allegations in the complaint and the response must be received no later than twenty (20) days after the date of service of the complaint. Failure to file a response may result in inference being drawn against your interest.

Sincerely, ,

A handwritten signature in black ink, appearing to read "Marilyn R. Abbott", is written over a horizontal line.

Marilyn R. Abbott
Secretary

Enclosures:

1. Complaint
2. Notice of Investigation
3. Code of Federal Regulations



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

March 9, 2006

Embassy of The Republic of China
2133 Wisconsin Avenue, N.W.
Washington, DC 20007
Attn: Commercial Office

**Re: Certain Digital Portable Power Stations And Packaging Therefor
Inv. No. 337-TA-563**

Dear Sir/Madam:

This letter is to advise you that the U.S. International Trade Commission has instituted an investigation under section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). One or more of the party-respondents name in the investigation is located in **China**.

Pursuant to Commission rule 210.11(a)(3), we are hereby serving you with a copy of the complaint filed in this investigation together with a copy of the Commission's notice of investigation.

Sincerely,

A handwritten signature in black ink, appearing to read "Marilyn R. Abbott", is written over the typed name and title.

Marilyn R. Abbott
Secretary

Enclosure:

1. Complaint
2. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

March 9, 2006

George F. McCray, Esq.
Chief, Intellectual Property Rights Branch
U.S. Bureau of Customs and Border Protection
Mint Annex Building
1300 Pennsylvania Avenue, NW
Washington, DC 20229

**Re: Certain Digital Portable Power Stations And Packaging Therefor
Inv. No. 337-TA-563**

Dear Mr. McCray:

The Commission has instituted an investigation under section 337 of the Tariff Act of 1930 (19 U.S.C. §1337). A copy of the investigation is enclosed. Non-confidential copies of the complaint and any supplement filed in the investigation will be provided upon request. Request should be directed to Marilyn R. Abbott, Secretary at (202) 205-1802.

If you have questions concerning this investigation, please contact the Commission investigative attorney whose name and telephone number appear in the enclosed notice.

Sincerely,

A handwritten signature in black ink, appearing to read "Marilyn R. Abbott", is written over a horizontal line.

Marilyn R. Abbott
Secretary

Enclosure:

1. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

March 9, 2006

Richard Lambert, Esq.
Department of Health & Human Services
Office of General Counsel
National Institute of Health
Building 31, Room 2B50
9000 Rockville Pike
Bethesda, MD 20892-2111

**Re: Certain Digital Portable Power Stations And Packaging Therefor
Inv. No. 337-TA-563**

Dear Mr. Lambert:

The Commission has instituted an investigation under section 337 of the Tariff Act of 1930 (19 U.S.C. §1337). A copy of the investigation is enclosed. Non-confidential copies of the complaint and any supplement filed in the investigation will be provided upon request. Request should be directed to Marilyn R. Abbott, Secretary at (202) 205-1802.

If you have questions concerning this investigation, please contact the Commission investigative attorney whose name and telephone number appear in the enclosed notice.

Sincerely,

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Marilyn R. Abbott
Secretary

Enclosure:

1. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

March 9, 2006

Edward T. Hand
Chief, Foreign Commerce Section
Antitrust Division
U.S. Department of Justice
601 D. Street, NW – Room 10023
Washington, DC 20530

**Re: Certain Digital Portable Power Stations And Packaging Therefor
Inv. No. 337-TA-563**

Dear Mr. Hand:

The Commission has instituted an investigation under section 337 of the Tariff Act of 1930 (19 U.S.C. §1337). A copy of the investigation is enclosed. Non-confidential copies of the complaint and any supplement filed in the investigation will be provided upon request. Request should be directed to Marilyn R. Abbott, Secretary at (202) 205-1802.

If you have questions concerning this investigation, please contact the Commission investigative attorney whose name and telephone number appear in the enclosed notice.

Sincerely,

A handwritten signature in cursive script, appearing to read "Marilyn R. Abbott", is written over a horizontal line.

Marilyn R. Abbott
Secretary

Enclosure:

1. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

March 9, 2006

Randy Tritell, Esq.
Director for International Antitrust
Federal Trade Commission, Room 380
Pennsylvania Avenue at Sixth Street, NW
Washington, DC 20580

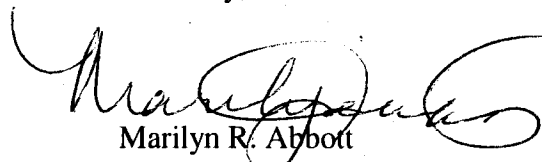
**Re: Certain Digital Portable Power Stations And Packaging Therefor
Inv. No. 337-TA-563**

Dear Mr. Tritell:

The Commission has instituted an investigation under section 337 of the Tariff Act of 1930 (19 U.S.C. §1337). A copy of the investigation is enclosed. Non-confidential copies of the complaint and any supplement filed in the investigation will be provided upon request. Request should be directed to Marilyn R. Abbott, Secretary at (202) 205-1802.

If you have questions concerning this investigation, please contact the Commission investigative attorney whose name and telephone number appear in the enclosed notice.

Sincerely,


Marilyn R. Abbott
Secretary

Enclosure:

1. Notice of Investigation

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3. Also complete item 4 if Restricted Delivery is desired.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

Roadmaster (USA) Corporation
41 James Way
Eatontown, NJ 07724

2. Article Number

(Transfer from service label)

7003 2260 0004 5445 3186

PS Form 3811, August 2001

Domestic Return Receipt

102595-02-M-1540

COMPLETE THIS SECTION ON DELIVERY

A. Signature

X

☐ Agent☐ Addressee

B. Received by (Printed Name)

C. Date of Delivery

D. Is delivery address different from item 1?

☐ YesIf YES, enter delivery address below: ☐ No

3. Service Type

☒ Certified Mail☐ Express Mail☐ Registered☐ Return Receipt for Merchandise☐ Insured Mail☐ C.O.D.

4. Restricted Delivery? (Extra Fee)

☐ Yes

Roadmaster (USA) Corporation

2. Article Number

(Transfer from service label)

7003 2260 0004 5445 3186

PS Form 3811, August 2001

Domestic Return Receipt

102595-02-M-1540

NOT 337-563

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3. Also complete item 4 if Restricted Delivery is desired.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

James Greenberg, Esq.
Wolf, Block, Schorr and
Solis-Cohn LLP
1650 Arch Street, 22nd Floor
Philadelphia, PA 19103

James Greenberg

2. Article Number

(Transfer from service label)

7003 2260 0004 5445 3193

PS Form 3811, August 2001

Domestic Return Receipt

102595-02-M-1540

NOT 337-563

COMPLETE THIS SECTION ON DELIVERY

A. Signature

X

☐ Agent☐ Addressee

B. Received by (Printed Name)

C. Date of Delivery

D. Is delivery address different from item 1?

☐ YesIf YES, enter delivery address below: ☐ No

3. Service Type

☒ Certified Mail☐ Express Mail☐ Registered☐ Return Receipt for Merchandise☐ Insured Mail☐ C.O.D.

4. Restricted Delivery? (Extra Fee)

☐ Yes

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3. Also complete item 4 if Restricted Delivery is desired.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

Embassy of The Republic of China
2133 Wisconsin Avenue, N.W.
Washington, DC 20007
Attn: Commercial Office

2. Article Number

(Transfer from service label)

7003 2260 0004 5445 3209

PS Form 3811, August 2001

Domestic Return Receipt

102595-02-M-1540

COMPLETE THIS SECTION ON DELIVERY

A. Signature

X

☐ Agent☐ Addressee

B. Received by (Printed Name)

C. Date of Delivery

D. Is delivery address different from item 1? ☐ Yes
If YES, enter delivery address below: ☐ No

3. Service Type

☒ Certified Mail☐ Express Mail☐ Registered☐ Return Receipt for Merchandise☐ Insured Mail☐ C.O.D.

4. Restricted Delivery? (Extra Fee)

☐ Yes*Embassy of The Republic of China*

NOT 337-563

Sinochem Ningbo, Ltd.
21 JiangXia Street
Ningbo 315000 China